IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
SPECIAL BENCH

ITEM No. 125
(CAA)-28(PB)/2018

IN THE MATTER OF:
K.D. Consultancy Services Pvt. Ltd. and
Wellpoint Systems Pvt. Ltd. with Complete
Dewatering Systems Pvt. Ltd. .... Applicant/petitioner

Order under Section 230-232

Order delivered on 22.01.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

DR. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)

PRESENTS:

For the petitioner	Mr. Saurabh Kalia & Mr. Palash Agarwal, Advs.
For the RD	Ms. Sonam Sharma, CP
For the OL	Mr. Shubham Pandey, Adv.
For the ITD	Ms. Easha Kadian, Adv. for Ms. Lakshmi Gurung, Standing Counsel for Income Tax Department

ORDER

This is second motion final hearing. In reply to the observation made by the Income Tax Department with regard to transferee company No. 3 the petitioner has filed the reply on 23.10.2018 and in para 4/5 it has been stated that the demand of the Income Tax Department is subject matter of rectification application filed by the transferee company which is pending consideration of the Income Tax Department(Annexure B) and Indemnity Bond dated 19.09.2018 has been given by transferee company to indemnify against all cost, damages and expenses in favour of Income Tax Department(Annexure C).

On behalf of the OL, no objection has been raised whereas on behalf of the RD the only observation is with regard to the enhance authorised share capital by the transferee company and the fee payable thereon. In response thereto, the petitioner has in its reply dated 10.07.2018 stated in para 5 that the petitioner companies may be directed to comply with the provisions of Section 232(3) (i) of the Companies Act, 2013 and further we directed to furnish a verified treatment regarding fee payable if any for addition of authorised share capital of the transferee company with that of the transferee company along with the undertaking for payment of the said fee. Undertaking to that effect has also been filed.

Arguments heard. Order reserved.

-Sd-

(M.M.KUMAR)
PRESIDENT

-Sd-

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

22.01.2019
Ritu Sharma